

**Draft for exact-file review**

Proposed language. Accepted source facts retain their original status. No execution, filing, payment or clearance is established by this edition.

Sacramento, Fort and Bedford proposed site tenure and access instrument

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This is a proposed synthetic instrument for exact-content review. It has not been signed, adopted, delivered to a counterparty or made effective. Existing accepted facts cited below remain controlling; new clauses are proposed terms, not retrospective evidence.

Operative-text convention: The clauses below are proposed contract language. “Shall” describes an obligation only upon future authorized execution and satisfaction of the stated conditions; no obligation, access right or operational activation arises from this unsigned draft.

1. Instrument structure and parties

This proposed form shall support a separately negotiated site agreement for each scheduled location. It is not a deed, executed lease or occupancy certificate. The proposed accessing and contracting party for all three site schedules is **Sable Harbor, LLC (SHI)**, using its accepted parent identity rather than inventing a campus, Willow or Cradle corporation. Any later proposal to use a different accepted legal entity requires a specific site decision. The property counterparty, description, consideration, signatory authority and effective date remain to be accepted in the selected schedule. A business-line label or map ID shall not substitute for a legal party or property interest.

The proposed form distinguishes an early investigation/access phase from a later tenancy or acquisition instrument. Limited inspection access, if separately signed by a party with authority, shall not establish possession, construction rights or purchase commitment. The later instrument shall require an accepted property exhibit and commercial schedule. No access right arises merely because this draft names a site.

All three campuses have accepted institutional or operating roles. Their current drawings are planning models with unestablished tenure and construction/occupancy dates. The form preserves that distinction. It does not deny accepted business activity at Bedford or the Fort; it also does not treat a specific modelled building footprint as a historical occupied building.

2. Proposed investigation access grant

A property counterparty shall grant the named visitor team nonexclusive access during agreed windows solely for records review, visual inspection and separately authorized investigations. Access shall exclude destructive testing, excavation, installation, public opening and interference with existing occupants unless the written investigation scope expressly permitted them. The accessing party shall supply visitor names and the proposed work scope through the counterparty's ordinary site process, without publishing private contact details in the repository.

The counterparty could suspend access for an identified immediate site condition or unauthorized work. The accessing party shall stop the affected work, preserve observations and propose a revised scope. Neither party could use suspension to convert an unverified condition into an accepted liability allocation. The grant shall terminate after 90 calendar days from its future effective date unless extended in writing. That duration is a proposed investigation window, not a historical site milestone.

Each party shall retain its pre-existing records and intellectual property. Factual inspection findings shall remain available to the party commissioning them and subject to any agreed confidentiality. A favourable desktop review shall not constitute environmental, structural, utility or title certification.

3. Conditions for a definitive site agreement

Before moving from investigation access to tenancy or acquisition, the site schedule shall identify: the legal interest being granted; grantor authority; an accepted legal/property description; existing occupiers and retained areas; access and service rights; allocation of utilities and maintenance; an environmental baseline; proposed use; consideration; commencement conditions; and responsibility for obtaining required professional and external approvals.

These are completion conditions, not a representation that any condition is satisfied. The form creates no automatic conversion from licence to lease and no option price. A campus envelope and acreage range may guide selection, but must not be attached as a surveyed legal description. If the eventual parcel changes the plan, Facilities and the operating owner must reconcile the campus program before using the drawing as an exhibit.

Any rent commencement shall follow the commencement conditions expressly accepted for that site. Approval of a plan, signing of an investigation licence and physical handover are different events. A later commencement certificate shall state the relevant instrument, site, accepted premises, date, open exceptions and signatory authority. No certificate is completed in this draft.

4. Use, alterations and operating boundaries

The occupier shall use the premises only for the site-specific purpose agreed below and activities authorized by the definitive instrument. A generic research use shall not authorize every laboratory process, material inventory or overnight use. Proposed changes affecting utilities, containment, structure, public access or material handling shall require an agreed alteration scope and operating review before installation.

The owner of an alteration, its funding, removal obligation and effect on the underlying property shall be specified in the work order. Approval of architectural appearance shall not be approval of construction or equipment procurement. A modelled room count is neither installed capacity nor a covenant that the counterparty has delivered that space.

Routine workplace administration shall remain under ESS Facilities/Workplace; substantive business operation shall remain with the appropriate business owner. J2 institutional authority shall not move into ESS because ESS administers accommodation. Internal Audit access shall be arranged consistently with its independent accountability. The landlord or property counterparty shall receive no organizational authority over Sable Harbor's businesses.

5. Sacramento site schedule — SH-SITE-0001

Sacramento remains the primary corporate operating base and management/J2 headquarters. The intended setting is the Railyards / River District seam. The working 8–15-acre envelope is fictional/modelled pending supported parcel selection. The current approved-reference-derived campus model uses an 840 × 600 foot illustrative local frame; that is a composition and planning basis, not a title description.

The intended premises shall support the integrated corporate, J2, education and residence program identified by the campus source. Buildings SH-SITE-0001-A through the corresponding campus building register remain modelled program elements. The definitive agreement shall need an exhibit tying premises, common routes, public arrival, service access and restricted areas to an accepted property boundary. A separate J2 department lease or independent building acquisition is not implied.

The permitted-use proposal includes corporate workplace, Board and visitor accommodation, project collaboration, secure institutional work, education and the specifically reviewed temporary residence component. It excludes a primary Alexandria/enterprise production data center. Campus equipment rooms may support local edge, communications and workplace systems; off-campus production hosting is a separate agreement and failure domain.

Parking, bicycle access, loading, accessible routes, stormwater and utility rights must be agreed as site obligations after design review. Drawn parking bays are not a statement of entitlement or adequate operational supply. Public opening, overnight residence and education events each require their own readiness disposition; none begins automatically on the paper date of this proposed instrument.

6. Fort site schedule — SH-SITE-0003

The Fort is Willow's Pittsburgh-area industrial compound, with an accepted approximate 10–20-acre concept. The proposed model's 250 × 243 metre envelope represents 15.01 acres and is not a selected parcel. The named Big Shed, Small Shed and White Shed retain their accepted roles; the outdoor Museum remains a working collection, not a fourth building or public visitor attraction.

The use proposal shall allow bounded research, prototyping, instrumentation, integration, controlled intake and storage, administration and a modest temporary guest component. Any permission for short stays shall be confined to an expressly accepted lodging exhibit; six beds in the model are a conditional capacity, not occupancy history or permanent housing rights.

The premises schedule shall distinguish research hardstand from collection/storage, clean pedestrian movement from receiving, and controlled equipment intake from research release. Host or landlord access shall be coordinated around active experiments. Nothing authorizes unsanctioned field access, production deployment without an operating owner, or representations outside delegated authority. Site tenure shall not revive Klein as a current operating unit; historical physical artifacts may remain under Willow custody.

7. Bedford site schedule — SH-SITE-0005

Bedford is Cradle's Fairmont-area recovery-development and upgrading center on a fictional 15–20-acre redeveloped industrial brownfield. The proposed 250 × 283 metre frame represents 17.48 acres. Belle/Kanawha is superseded as Bedford's intended geography. No river berth, rail siding, exact street address or measured property polygon is supplied here.

The proposed use shall include analytical/process development, field-module assembly and refurbishment, controlled material receipt, genealogy verification, intermediate upgrading/blending, secure storage and outbound logistics. It does not include conventional mining, commercial separation of every REE or magnet manufacturing. The four modelled structures are program proposals; they do not establish existing installation or throughput.

The property exhibit shall need separate incoming-held and outgoing-released material areas, a controlled sample pathway, returned-equipment inspection, delivery access and utility/containment responsibilities. Brownfield baseline, flood context and service capacity remain required evidence. Bedford does not absorb Demotte's host treatment assets or Kelly Gang Mining's mine, workforce or liabilities. Those external-host rights are governed by separate deployment schedules.

8. Financial and risk allocation

No rent, purchase consideration, deposit, service charge or commencement liability is established. Each proposed definitive schedule shall identify currency, invoicing basis, due date, tax treatment, deposit custody, approved fit-out budget and responsibility for common costs. A per-square-foot rate cannot be inferred from modelled gross area. A drawing's capital reserve does not create a committed capital program.

The investigation phase proposal is that each party bears its own review costs unless a separately accepted work order allocates a specific third-party charge. The accessing party shall restore damage caused by its authorized investigation, excluding pre-existing conditions. Historic contamination, remediation, casualty and insurance responsibilities for the later occupancy phase shall be negotiated against the actual baseline rather than transferred through a blanket assertion that the property is accepted as seen.

9. End of access and definitive review

On expiry of investigation access, the accessing party shall remove temporary equipment, return controlled access credentials and preserve the factual record. It shall have no continuing possession or implied renewal. If a definitive agreement follows, its express schedule shall govern commencement, maintenance, default, casualty, termination and reinstatement; no future lease balance is calculated from this preliminary form.

The proposed execution record remains blank as to parties' legal capacity, property, commercial terms and dates. The next review should select a site and instrument type, not sign all three schedules for symmetry. Accepted originals, R01 references and current model statuses remain unchanged until a source-backed decision expressly supersedes the relevant fields.

Execution and schedule completion

The parties shall complete the following fields for the specific instrument or deployment selected. An unfilled field is not zero, waived, agreed or inapplicable. No name or mark is placed in a signature cell. A role listed for review is not an additional contracting party.

Completion field	Proposed entry / current state
Selected instrument and schedule	UNSELECTED — identify exact site, deployment, right or service
Contracting party completion	Known parties are named in the clauses; confirm any unselected counterparty and individual authority before execution
Effective date and any separate commencement/activation date	UNESTABLISHED; no backdating
Material commercial variables not fixed in the clauses	UNAGREED; complete the relevant financial schedule before execution
Accepted exhibits and revisions	NOT ATTACHED; identify authoritative boundaries and source records
Governing law, forum and notice addresses	UNAGREED; definitive legal review required
Open exceptions and conditions precedent	UNSATISFIED unless individually supported in the execution record

Party / review role	Signatory name and authority reference	Signature / acknowledgment	Date
Identified property grantor — authorized signatory	UNESTABLISHED	NOT SIGNED	UNESTABLISHED
Sable Harbor, LLC (SHI) — authorized signatory	UNESTABLISHED	NOT SIGNED	UNESTABLISHED
Facilities/Workplace — premises and handover review	UNESTABLISHED	NOT SIGNED	UNESTABLISHED
Site operating owner — permitted-use acceptance	UNESTABLISHED	NOT SIGNED	UNESTABLISHED

Execution of this form shall not constitute satisfaction of a separate condition precedent. The commencement or activation record shall list each accepted exhibit and unresolved exception, identify who may authorize the next step, and remain separate from any record of cash payment or performed service.

Source documents

- docs/canon/CORPORATE_HEADQUARTERS_CLOSEOUT_2026-09-03.md
- docs/canon/WILLOW_KLEIN_CLOSEOUT_2026-09-06.md
- docs/canon/CRADLE_CLOSEOUT_2026-09-06.md
- geospatial/facilities/source/campus.json
- geospatial/facilities/source/research_campuses.json
- geospatial/facilities/RESEARCH_CAMPUSES.md
- Industrial ownership and formation record